

Shashi Kashyap v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 8 December 2022 · WRIT - C No. 32618 of 2022 · **Writ disposed of on licensee's 4.4(a)(i) indemnity-bond statement.**

HEADNOTE

On the distribution licensee's statement that the petitioner may submit an indemnity bond under clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005, after which the new-connection application would be considered and decided in accordance with law, the High Court disposed of the writ without adjudicating entitlement on merits.

FACTUAL SUMMARY

Shashi Kashyap petitioned the Allahabad High Court for an electricity connection. On 1 December 2022 a Division Bench listed the writ as a fresh matter on 8 December 2022. On that date, counsel for respondent no.3 (the distribution licensee) submitted that the petitioner may furnish an indemnity bond under paragraph 4.4(a)(i) of the U.P. Electricity Supply Code, 2005, after which the connection application would be considered. The Court disposed of the petition in terms of that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4(a)(i)

indemnity bond for new connection

HOLDING

Where the distribution licensee states that a new-connection applicant may submit an indemnity bond under clause 4.4(a)(i) of the U.P. Electricity Supply Code, 2005, and that the application will thereafter be considered and an appropriate decision taken in accordance with law, the High Court may dispose of the writ in terms of that statement without deciding entitlement on the merits. ¶ 1

PRINCIPLE TAGS

UP-2005::4.4(a)(i) The Court accepted the licensee's statement that the petitioner may submit a clause 4.4(a)(i) indemnity bond, after which the connection application would be considered in accordance with law, and disposed of the writ on that basis. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A NEW ELECTRICITY CONNECTION ON THE MERITS

Left to the licensee's consideration after submission of the 4.4(a)(i) indemnity bond. ¶ 1